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Acting Deputy Administrator Ben Kochman
Pipeline and Hazardous Materials Safety Administration,
U.S. Department of Transportation,
1200 New Jersey Avenue SE,
Washington, DC

Docket Number PHMSA-2019-0091

Submitted to <https://www.regulations.gov/document/PHMSA-2019-0091-0012>

Dear Deputy Administrator Kochman,

Thank you for the opportunity to submit the following comments in reference to the Pipeline Hazardous Materials and Safety Administration's (PHMSA) advanced notice of rulemaking on potential amendments to the pipeline safety regulations governing liquefied natural gas (LNG).

About WE ACT

WE ACT for Environmental Justice ("WE ACT") is a Northern Manhattan-based member organization whose mission is to advocate for and build healthy communities by ensuring communities of Color and low income communities lead in creating just and equitable environmental health laws, policies, and practices.¹ Since its founding in 1988, WE ACT has worked to serve environmental justice communities across the country which have been and continue to be adversely affected by harmful infrastructure, pollution, and the inequitable enforcement of environmental laws. WE ACT consistently calls for strong environmental protections and actions that address and remediate historical burdens. WE ACT's Federal Policy Office in Washington, D.C. pursues national policy solutions that take into account the positions and voices of environmental justice organizations across the country. The Federal Policy Office addresses injustice and equity within the federal landscape and seeks to drive just and equitable solutions in the realms of clean air, clean water, climate, transportation, and energy justice, as well as the creation of healthy homes and other issue areas.

¹ WE ACT for Environmental Justice, "Who we Are," WE ACT Website, Aug. 4, 2023, <https://www.weact.org/whoweare/ourstory/>.



General Position on LNG

Liquefied natural gas (LNG) production is projected to nearly double with the added capacity of 104 planned pipeline projects over the next 5 years.² This expansion presents a danger to communities near planned facilities and pipelines. These communities are not only at risk of health complications from continuous exposure to air and water pollution but also to hazards from explosions, leaks and other malfunctions.³ Health impacts to communities near fossil fuel infrastructure have been documented for decades as well as the disproportionate siting of these facilities in low income and communities of color.⁴ In effect, these communities are designated as 'sacrifice zones,' forcing residents to shoulder these aforementioned impacts.

In addition to the detrimental health impacts to environmental justice communities, WE ACT opposes the continued expansion of LNG infrastructure due to the emissions of greenhouse gases that exacerbate the climate crisis and the economic burden it places on taxpayers. Through its extraction, production, transport, and use, LNG produces GHG emissions exceeding those of even coal.⁵ Climate scientists, the Intergovernmental Panel on Climate Change, as well as numerous other well respected and reputable bodies have emphasized the catastrophic impacts from each additional degree of warming the planet undergoes.⁶ LNG expansion will lock in emissions for decades to come.⁷ This fact is especially relevant to environmental justice communities as these communities will bear the brunt of these impacts. Notably the EPA has highlighted that Black Individuals are 40% more likely to live in the areas with the highest projected increases in mortality rates, Hispanic and Latino individuals 43% more likely to live in areas with the highest projected labor losses and Native American

² Richter, D., & Symons, J. (2025). *Tidal Wave—Greenhouse Gas Emissions from the Coming Wave of US Natural Gas Transmission Pipelines*. Center for Energy & Environmental Analysis. <https://ceea.us/tidal-wave/>

³ Environmental Health Project. (2023, August 10). *Liquefied Natural Gas (LNG): Health and Climate Impacts*.

<https://www.environmentalhealthproject.org/post/liquefied-natural-gas-lng-health-and-climate-impacts>

⁴ Robin Saha, Ph.D., Robert D. Bullard, Ph.D., & Liza T. Powers, Ph.D. (2024). *Liquefying the Gulf Coast a Cumulative Impact Assessment of LNG Buildout In Louisiana And Texas*. Robert D. Bullard Bullard Center for Environmental and Climate Justice.

https://cdn.prod.website-files.com/614d88a190900e498857f581/664604a23f64fa6444dd2a2b_Bullard%20Center%20Liquefying%20the%20Gulf%20Coast%20Report.pdf

⁵ Howarth, R. W. (2024). The greenhouse gas footprint of liquefied natural gas (LNG) exported from the United States. *Energy Science & Engineering*, 12(11), 4843–4859. <https://doi.org/10.1002/ese3.1934>

⁶ Calvin, K., Dasgupta, D., Krinner, G., Mukherji, A., Thorne, P. W., Trisos, C., Romero, J., Aldunce, P., Barrett, K., Blanco, G., Cheung, W. W. L., Connors, S., Denton, F., Diongue-Niang, A., Dodman, D., Garschagen, M., Geden, O., Hayward, B., Jones, C., ... Péan, C. (2023). *IPCC, 2023: Climate Change 2023: Synthesis Report. Contribution of Working Groups I, II and III to the Sixth Assessment Report of the Intergovernmental Panel on Climate Change [Core Writing Team, H. Lee and J. Romero (eds.)]*. IPCC, Geneva, Switzerland. (First). Intergovernmental Panel on Climate Change (IPCC).

<https://doi.org/10.59327/IPCC/AR6-9789291691647>

⁷ See footnote 2



Individuals 48% more likely to live in areas that will be inundated due to sea level rise.⁸ For environmental justice communities these climate impacts will only serve to further exacerbate their impacts from exposure to air and water pollution.

Beyond the climate risks this expansion will result in higher energy costs both domestically and abroad.⁹ Already in Q1 of this year natural gas prices have doubled compared to Q1 of last year with increased production identified as the leading driver.¹⁰ For US consumers this translates to increased prices for home gas, electricity and other goods. These negative impacts coupled with the fact that the U.S already produces enough LNG to meet both domestic and global demand demonstrate that this expansion is unnecessary and ultimately detrimental to both domestic and international consumers.

Ultimately, the best protection for frontline communities and the wider American public, is the halting of new and expanded LNG infrastructure and instead transitioning towards renewable energy, such as but not limited to solar and wind. To that end, in January last year, WE ACT applauded the pause of new LNG projects as an encouraging step towards a green transition.¹¹ Later on in December, this pause was further validated as the DOE's Public Interest Determination rightfully raised concerns with a potential LNG buildout including its impact on Environmental Justice Communities, consumer prices and climate change.¹² Since then however the findings have been skewed in favor of Liquid Natural Gas and the pause lifted despite the clear evidence that a buildout of LNG is not in the best interest of the public.¹³

⁸ Environmental Protection Agency. (2021). *Climate Change and Social Vulnerability in the United States—A Focus on Six Impacts*. <https://primarysources.brillonline.com/browse/climate-change-and-law-collection/climate-change-and-social-vulnerability-in-the-united-states-a-focus-on-six-impacts:cccc016620210513>

⁹ Pressentin, M., Schmidt, J., Julian Schwartzkopff, Shannon Baker-Branstetter, Jasia Smith, & Akshay Thyagarajan. (2025). *LNG Projects Are a Bad Deal for Germans and Americans*. Center for American Progress.

<https://www.americanprogress.org/article/lng-projects-are-a-bad-deal-for-germans-and-americans/>

¹⁰ Symons, J. (2025). *Drill More, Pay More—American's New Energy Paradigm*. Center for Energy & Environmental Analysis. <https://ceea.us/drill-more-pay-more/>

¹¹ WE ACT for Environmental Justice. (2025, January 26). *WE ACT for Environmental justice Commends Pause on LNG Projects, But Notes Need to Center Frontline Communities for True Climate Justice*. <https://weact.org/updates/we-act-for-environmental-justice-commends-pause-on-lng-projects-but-notes-need-to-center-of-frontline-communities-for-true-climate-justice/>

¹² WE ACT for Environmental Justice. (2024, December 17). *WE ACT for Environmental justice Commends Pause on LNG Projects, But Notes Need to Center Frontline Communities for True Climate Justice*. <https://weact.org/updates/we-act-on-new-doe-liquefied-natural-gas-study-lng-is-not-in-the-public-interest/>

¹³ WE ACT for Environmental Justice. (2025,). *Advocates: Americans Should Prepare for Higher Bills & More Pollution as Trump's DOE Buries Truth to Expedite More LNG Exports*. <https://weact.org/updates/advocates-americans-should-prepare-for-higher-bills-more-pollution-as-trumps-doe-buries-truth-to-expedite-more-lng-exports/>



Response to Sections C (LNG facility reporting requirements) and D (Update of NFPA 59A-2001 Standard)

Since 2002, 5773 workers and community members have died due to significant incidents.¹⁴ Given this context and PHMSA's statutory requirements WE ACT urges PHMSA to adopt the most stringent standards possible in its upcoming Part 193 updates. To best protect our communities, we call for PHMSA to take an approach that centers communities and workers safety. Unfortunately the questions presented in this Notice of Advance Comment indicate an approach that caters to industry and ill-considered deregulation. Of particular concern to us are the questions contained in Sections C and D.

In Section C, we encourage PHMSA to institute reporting requirements that will ensure facilities have timely, accessible and effective communication with surrounding communities. Poor communication from operators can delay precautions that may be needed to safeguard human health and property. Currently, too much discretion is given towards facilities to report incidents resulting in numerous episodes going unreported. With this PHMSA must enforce stronger reporting requirements so no community members or workers die as a direct consequence of limited communication about an incident.¹⁵ We urge PHMSA to look towards our Community Engagement Brief for best practices in engaging environmental justice communities¹⁶ as well as Section VIII: Agency Transparency, Accountability, Public Engagement and Community Benefit in the WEJAC's Carbon Management Recommendations. While these two resources do not specifically address LNG, many of the practices highlighted are transferable to LNG projects.¹⁷

Regarding Section D, while we support updating the outdated regulations, we are concerned with the process in which NFPA 59A was developed. NFPA 59A was developed by the National Fire Protection Association, a body which has collaborated with oil and gas interests like the American Petroleum Institute for over a century.¹⁸ This approach delegates regulatory authority to the very entities being regulated, undermining impartial oversight and raising serious concerns about conflicts of interest.¹⁹ WE ACT instead calls on PHMSA to

¹⁴ Pipeline Safety Trust. (2024). *Pipeline Briefing Papers/Informes de las tuberías*.
<https://pstrust.org/briefing-papers/>

¹⁵ See footnote 14

¹⁶ WE ACT for Environmental Justice, "Community Engagement Brief: Ensuring environmental justice communities participate in decision-making on Justice40 Initiative and beyond." 2022.
<https://www.weact.org/wp-content/uploads/2022/10/Community-Engagement-Brief-092322-FINAL.pdf>

¹⁷ WHEJAC, 2024. "Recommendation Report 2 White House Environmental Justice Advisory Council Recommendations: Carbon Management"
<https://www.epa.gov/system/files/documents/2024-10/whejac-carbon-management-recommendations-october-2024.pdf>

¹⁸ American Petroleum Institute. (2019, May 31). *API and NFPA Integration*.

<https://www.api.org/-/media/files/oil-and-natural-gas/refining/api%20and%20nfpa%20integration.pdf>

¹⁹ See footnote 10



develop its own regulations with a process that not only includes industry but also environmental justice, public health, engineers, health and safety experts, workers safety organizations, and other relevant stakeholders. Without critical input from these stakeholders from the beginning, these safety regulations will fall short of achieving the safety standards that our communities deserve.

Conclusion

In closing, we continue to uphold that environmental justice must be at the forefront in regulations for LNG and other infrastructure development. This new expansion of LNG infrastructure continues historical and current day harms to environmental justice communities, propels the climate crisis and raises prices for Americans across the country. PHMSA in service to the American people must adopt the most stringent standards possible to prevent these harms.

Thank you for considering our input. We look forward to engaging the agency as it works towards finalizing and implementing the part 193 update and welcome the opportunity to further discuss our comments.